NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-60/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

BG INDIA ENERGY PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

BG INDIA ENERGY SERVICES PRIVATE LIMITED

...Applicant No.2/ Transferor Company

AND

BG LNG REGAS INDIA PRIVATE LIMITED

...Applicant No. 3/Transferor Company

WITH

BG INDIA ENERGY SOLUTIONS PRIVATE LIMITED

...Applicant No. 4/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 11.06.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Shirpal Lakdawala, Advocate

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

The present Application No. C.A.(CAA)60/ND/2021 is filed by the Applicants under Sections 230 to 232 of the Companies Act, 2013 with a prayer to dispense with convening and holding of the meeting of Shareholders and Creditors of the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation', which shall take effect from the Appointed Date of 01.04.2020.

2. On perusal of the records of this Application, it is observed that the Applicant Companies have not filed the Affidavits of their Unsecured Creditors. The Applicants have averred in paragraphs 4.17, 4.18, 4.19 and 4.20 of the application that :

> *".....The applicant further craves leave to rely and produce the consent affidavits whenever called for by the Tribunal and in due course. Accordingly, the Transferor Company submits that convening and holding a meeting of the Unsecured Creditors is not required....."*

3. The Applicant Companies are accordingly directed to bring Affidavits of unsecured Creditors on record or provide the requisite details for conducing the meeting by filing a supplementary Affidavit.

4. The Applicant Companies are also directed to file Affidavits in full Compliance of Section 230(2)(a) of Companies Act 2013 disclosing the Proceedings or

Investigation pending or instituted against the Applicant Companies under any law or by any Authority.

5. Let the needful be done within 2 weeks from today. The matter is accordingly de-reserved. List on 07.07.20201.

-S/d-
(L. N. Gupta)
Member (T)

-S/d-
(Abni Ranjan Kuma Sinha)
Member (J)